

ACT No. III OF 1885.

PASSED BY THE GOVERNOR GENERAL OF INDIA IN COUNCIL.

(Received the assent of the Governor General on the 30th
January, 1885.)

An Act to amend the Transfer of Property
Act, 1882.

WHEREAS it is expedient to amend the Transfer
of Property Act, 1882; It is hereby enacted as
follows:—

1. For the fifth clause of section 1 of the said Act
the following shall be substituted, namely:—

Amendment
of section 1
of Act IV of
1882.

“And any Local Government may, with the pre-
vious sanction of the Governor General in Council,
from time to time, by notification in the local official
Gazette, exempt, either retrospectively or prospect-
ively, any part of the territories administered by such
Local Government from all or any of the following
provisions, namely:—

“Sections fifty-four, paragraphs two and three,
fifty-nine, one hundred and seven and one
hundred and twenty-three.”

2. The following clause shall be deemed to have
been added to the first section of the said Act from
the date on which it came into force, namely:—

Addition to
same section.

“Notwithstanding anything in the foregoing part
of this section, sections fifty-four, paragraphs two and
three, fifty-nine, one hundred and seven and one
hundred and twenty-three shall not extend or be ex-
tended to any district or tract of country for the time
being excluded from the operation of the Indian Re-
gistration Act, 1877, under the power conferred by
the first section of that Act or otherwise.”

3. To

Addition to
section 4 of
same Act.

3. To section 4 of the said Act the following shall be added, namely :—

“And sections fifty-four, paragraphs two and three, fifty-nine, one hundred and seven and one hundred and twenty-three shall be read as supplemental to the Indian Registration Act, 1877.”

III of 1877.

Addition to
section 6 of
same Act.

4. To section 6 of the said Act the following clause shall be added :—

“(i) Nothing in this section shall be deemed to authorize a tenant having an untransferable right of occupancy, the farmer of an estate in respect of which default has been made in paying revenue or the lessee of an estate under the management of a Court of Wards to assign his interest as such tenant, farmer or lessee.”

Amendment
of section 69
of same Act.

5. In section 69 of the said Act—

(a) after the words “is valid in the following cases” the words “and in no others.” shall be inserted; and

(b) after the words “Hindu, Muhammadan or Buddhist”, in both places where they occur, there shall be inserted the words “or a member of any other race, sect, tribe or class from time to time specified in this behalf by the Local Government, with the previous sanction of the Governor General in Council, in the local official Gazette.”